

1 ENGROSSED SENATE
2 BILL NO. 1876

By: Reinhardt of the Senate

3 and

4 Tedford of the House

5
6 An Act relating to service of process; amending 36
7 O.S. 2021, Sections 621 and 622, which relate to
8 service of process on foreign insurers; modifying
9 persons that may be appointed as agent; modifying
10 revocability of agent appointment; requiring certain
11 agent information be submitted to the Insurance
12 Commissioner; providing for alternate service of
13 process in certain circumstances; modifying manner of
14 service of process; updating statutory language; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 36 O.S. 2021, Section 621, is
18 amended to read as follows:

19 Section 621. A. Each authorized foreign or alien insurer shall
20 appoint the Insurance Commissioner, a resident of this state, or a
21 person who is authorized to do business in this state as its agent
22 to receive service of legal process, other than a subpoena, issued
23 against it in this state upon any cause of action arising from its
24 transaction of business in this state. ~~The appointment shall be~~
~~irrevocable, shall bind any successor and shall remain in effect as~~
~~long as there is in force in this state any contract made by the~~
~~insurer or obligations arising therefrom.~~

1 B. Service of such process against a foreign or alien insurer
2 shall be made only by service of process upon the ~~Insurance~~
3 ~~Commissioner~~ agent appointed pursuant to subsection A of this
4 section. Service of process against a domestic insurer may be made
5 upon the insurer in the manner provided by laws applying to business
6 entities generally, or upon the insurer's attorney-in-fact if a
7 reciprocal insurer or a ~~Lloyds~~ Lloyd's association.

8 C. Each such insurer at the time of application for a
9 certificate of authority shall file with the Insurance Commissioner
10 designation of the name and address of the person to whom process
11 against it served upon the ~~Insurance Commissioner~~ agent appointed
12 pursuant to subsection A of this section is to be forwarded. The
13 insurer may change such designation by a new filing.

14 D. Any insurer appointing a registered agent other than the
15 Insurance Commissioner shall electronically submit the name and
16 address of the registered agent in the manner and form prescribed by
17 the Commissioner along with any applicable fee. Registered agent
18 names and addresses shall be made publicly available and kept
19 current, and any changes to such information shall be submitted to
20 the Commissioner within five (5) business days of such change.

21 E. If a person reasonably relies on the list of registered
22 agents maintained by the Insurance Commissioner pursuant to this
23 section and serves otherwise valid process on an insurance company's
24 designated registered agent, and it is later determined that the

1 registered agent listed by the Commissioner is incorrect, the person
2 may serve process upon the Commissioner. Such process shall be
3 served upon the Commissioner and a copy forwarded by the
4 Commissioner to the insurer in accordance with Section 622 of this
5 title. If the person uses due diligence to serve the Commissioner,
6 the applicable statute of limitations shall be tolled for the period
7 of time beginning when the incorrect registered agent received
8 process and ending when the Commissioner receives process.

9 SECTION 2. AMENDATORY 36 O.S. 2021, Section 622, is
10 amended to read as follows:

11 Section 622. A. Triplicate copies of legal process against an
12 insurer for whom the Insurance Commissioner is agent shall be served
13 upon the Commissioner at the principal offices of the Insurance
14 Department. When legal process against an insurer for whom the
15 ~~Insurance~~ Commissioner is agent is issued, it shall be served in
16 triplicate by any manner now provided by law or in lieu thereof by
17 mailing triplicate copies of such legal process in the United States
18 mails with postage prepaid to the ~~Insurance~~ Commissioner with return
19 receipt requested, in which event service shall be sufficient upon
20 showing of proof of mailing to the Commissioner with the return
21 receipt attached. At the time of service, the plaintiff shall pay
22 to the ~~Insurance~~ Commissioner Twenty Dollars (\$20.00), taxable as
23 costs in the action. Upon receiving service, the ~~Insurance~~
24 Commissioner shall promptly forward a copy thereof by mail with

1 return receipt requested to the person last so designated by the
2 insurer to receive the same.

3 B. ~~Process served upon the Insurance Commissioner and copy~~
4 ~~thereof forwarded~~ Copies of the petition and summons forwarded by
5 the Commissioner to the insurer's designated registered agent as
6 provided in this section shall constitute service upon the insurer.

7 SECTION 3. This act shall become effective November 1, 2026.

8 Passed the Senate the 9th day of March, 2026.

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11 Presiding Officer of the Senate

12 Passed the House of Representatives the ____ day of _____,
13 2026.

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16 Presiding Officer of the House
17 of Representatives
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